

ELIZABETH II



1979 CHAPTER vi

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Lerwick Harbour. [4th April 1979]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Lerwick Harbour Order Short title.
Confirmation Act 1979.

SCHEDULE

LERWICK HARBOUR

Provisional Order to authorise the Trustees of the port and harbour of Lerwick to construct new works in connection with the improvement of the harbour; and for other purposes.

1877 c. cxciv.

Whereas by the Lerwick Harbour Improvements Act 1877 (hereinafter referred to as "the Act of 1877") the Trustees of the port and harbour of Lerwick (hereinafter referred to as "the Trustees") were constituted for the purposes of the management, maintenance and regulation of the port and harbour of Lerwick:

And whereas it is expedient that the Trustees should be authorised to carry out the works hereinafter described for the improvement of the harbour:

And whereas estimates have been prepared by the Trustees in relation to the construction of the work authorised by this Order and such estimates are as follows:—

Work No. 1	A wall of steel sheet piling to form a solid quay and pier a total length of 417 metres or thereabouts	£4,000,000
Work No. 2	A solid quay wall at a total length of 226 metres or thereabouts	£2,000,000
		£6,000,000

And whereas a plan and sections showing the lines, situations and levels of the work to be constructed under the powers of this Order have been deposited with the sheriff clerk of Grampian Highland and Islands and with the clerk to the Shetland Islands Council and such plan and sections are in this Order respectively called the deposited plan and sections:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I

PRELIMINARY

Short title.

1.—(1) This Order may be cited as the Lerwick Harbour Order 1979.

(2) This Order and the Lerwick Harbour Acts 1877 to 1976 may be cited together as the Lerwick Harbour Acts 1877 to 1979 (hereinafter referred to as "the Harbour Acts").

PART I
—*cont.*

2.—(1) In this Order, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively:—

Interpretation.

"deposited plan and sections" means the plan and sections deposited in connection with this Order;

"the harbour" means the port and harbour of Lerwick as defined by the Harbour Acts and shall also include the works authorised by this Order;

"the level of high water" means the level of mean high-water springs;

"the limits of deviation" means the limits of deviation shown on the deposited plan;

"Order of 1971" means the Lerwick Harbour Order 1971; 1971 c. xxxix.

"tidal work" means so much of any work authorised by this Order as is on, under or over tidal waters or tidal lands below the level of high water;

"the Trustees" means the Trustees of the harbour for the time being acting under the Harbour Acts;

"the undertaking" means the undertaking of the Trustees as for the time being authorised;

"the works" means the works authorised by this Order or as the case may require any part thereof.

(2) Unless the context otherwise requires, any reference in this Order to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by any subsequent enactment, including this Order.

PART II

WORKS

3.—(1) Subject to the provisions of this Order the Trustees may in the Shetland Islands Area in the situations and lines and within the limits of deviation and according to the levels shown on the deposited plan and sections construct and maintain the works hereinafter described together with all necessary and proper works and conveniences connected therewith or incidental thereto, that is to say:—

Power to
construct
works.

Work No. 1 A wall of steel sheet piling commencing at a point 77 metres south-east of the south side of the Ferry Pier at its southernmost junction with the sea wall and thence proceeding in a south-south-easterly direction for a distance of 76 metres or thereabouts to form a solid quay, thence in an east-north-easterly direction for a distance of 20 metres or thereabouts, thence in an east-south-easterly direction for a distance of

PART II
—cont.

146 metres or thereabouts, thence in a circular arc of radius of 11 metres in a clockwise direction throughout 180°, thence in a west-north-westerly direction for a distance of 113 metres or thereabouts to form a solid pier, thence in a south-westerly direction for a distance of 45 metres or thereabouts to form a solid quay and there terminating at a point 17 metres north-east of the north-east corner of the jetty marked “ X ” on the deposited plan.

Work No. 2 A solid quay wall of steel sheet piling commencing at the termination of Work No. 1, thence proceeding in a south-easterly direction for a distance of 147 metres or thereabouts, thence in a south-westerly direction for a distance of 74 metres or thereabouts and there terminating at a point 33 metres south of the southern side of the root of the jetty marked “ Y ” on the deposited plan.

(2) The Trustees may within the limits of deviation reconstruct, renew, enlarge and alter temporarily or permanently the works.

Incorporation
of provisions
of Order of
1971.

4. The following provisions of the Order of 1971 are incorporated with and form part of this Part of this Order:—

- Section 4 (Subsidiary works);
- Section 5 (Power to deviate);
- Section 6 (Fine for obstructing work);
- Section 7 (Tidal works not to be executed without approval of Secretary of State);
- Section 8 (Survey of tidal works);
- Section 9 (Provision against danger to navigation);
- Section 10 (Abatement of works abandoned or decayed);
- Section 11 (Lights on tidal works during construction);
- Section 12 (Permanent lights on tidal works):

Provided that for the purposes of this Order—

- (i) in subsections (1) and (2) of section 7 of the Order of 1971 after the word “ constructed ” there shall be added the word “ reconstructed ”;
- (ii) in section 11 (1) after the word “ construction ” there shall be added the word “ reconstruction ”;
- (iii) at the end of sections 9, 11 and 12 of the Order of 1971 there shall be added the words “ and on conviction on indictment to a fine ”.

Saving for
Harbours Act
1964.
1964 c. 40.

5. Nothing in this Order shall exempt the Trustees or any other person from the provisions of sections 9 and 10 of the Harbours Act 1964.

Saving for
Coast
Protection Act
1949.
1949 c. 74.

6. Nothing in this Order shall exempt the Trustees or any other person from the provisions of Part I of the Coast Protection Act 1949.

Saving for
Dumping at
Sea Act 1974.
1974 c. 20.

7. Nothing in this Order shall affect the operation of the Dumping at Sea Act 1974.

PART III BORROWING

8.—(1) The Trustees may in addition to the sums already borrowed or authorised to be borrowed by them from time to time borrow— Power to borrow.

- (a) for the purposes of the undertaking such sum or sums of money as may be required for those purposes not exceeding in the whole two million pounds;
- (b) with the sanction of the Secretary of State such further sum or sums as may from time to time be required for the purposes of the undertaking; and
- (c) for paying the costs, charges and expenses of this Order, the sum requisite for that purpose.

(2) The Secretary of State shall have in relation to any such sanction as aforesaid all the powers of section 210 of the Local Government (Scotland) Act 1973 and such sanction shall be subject to such conditions (if any) as the Secretary of State may consider proper. 1973 c. 65.

(3) A person lending money to the Trustees on any form of security or taking or holding any such security shall not be bound to inquire whether the borrowing of the money is or was legal or regular or whether the money raised was properly applied and shall not be prejudiced by any illegality or irregularity in the matters aforesaid or by the misapplication or non-application of any such money.

9. The following provisions of the Order of 1971 are hereby incorporated with and form part of this Part of this Order:— Further incorporation of provisions of Order of 1971.

- Section 15 (Periods for repayment of borrowed money);
- Section 16 (Application of moneys borrowed);
- Section 17 (Mode of repayment of moneys borrowed on mortgage);
- Section 18 (Sinking fund);
- Section 19 (Investment of sinking fund);
- Section 20 (Return to Secretary of State);
- Section 21 (Saving for powers of Treasury).

10. The Trustees may accept and take from any bank or banking company credit on a cash account to be opened and kept with such bank or banking company in the name of the Trustees, according to the usage of bankers in Scotland, to the extent of the sums which the Trustees are by this Order authorised to borrow, or any part thereof: Power to borrow on cash credit.

Provided that the whole principal sums due and owing by the Trustees on such cash account, and for money borrowed by them on standard security, shall not when taken together exceed the amount which the Trustees are authorised to borrow under this Order; and all drafts or orders on the cash account shall be signed by any two of the Trustees, and countersigned by the clerk:

Provided further that no Trustee shall by his subscription of any draft or order, or of any security as aforesaid, be held to have rendered himself personally liable for the payment of any money so borrowed or drawn, or any interest thereon.

PART IV

MISCELLANEOUS

Saving for
Town and
Country
Planning Acts.
1972 c. 52.

11.—(1) Section 274 of the Town and Country Planning (Scotland) Act 1972 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session of Parliament held during the regnal years 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Order as if it had been passed during that session; and accordingly the Town and Country Planning (Scotland) Act 1972 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Order.

S.I. 1975/679
(S. 107).

(2) In their application to development authorised by this Order, article 3 of, and Class X in Schedule 1 to, the Town and Country Planning (General Development) (Scotland) Order 1975 (which permit development authorised by any local or private Act or by any Order approved by both Houses of Parliament, being an Act or Order designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Order were limited to development begun within ten years after the passing of the Act confirming this Order.

(3) In this section the reference to article 3 of, and Class X in Schedule 1 to, the Town and Country Planning (General Development) (Scotland) Order 1975 includes a reference to corresponding provisions of any general order superseding that order made under section 21 of the Town and Country Planning (Scotland) Act 1972 or any corresponding provision of an Act repealing that section.

Crown rights.

12. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained shall authorise the Trustees or any licensee of the Trustees to take, use or in any way interfere with any portion of the shore or bed of the sea or any river, channel, creek, bay or estuary or any land, heritages, subjects or rights of whatsoever description—

(a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or

(b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

Costs of Order.

13. All costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Trustees.

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Lerwick Harbour Order Confirmation Act 1979

CHAPTER vi

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